



**Rule 2.86—Form 3: Application to Expunge Public Intoxication Court Records under Iowa Code section 123.46**

*If you do not understand how to use this form, or if you are unsure whether you should use this form, talk to an attorney.*

**In the Iowa District Court for** Johnson **County**

*County where you are filing this Application*

**State of Iowa or** City of Example

vs.

Avery Jordan Example

**Defendant**

Case no. EXAMPLE-INT-LOCAL

**Application to Expunge Public  
Intoxication Court Records under Iowa  
Code section 123.46**

If you need assistance to participate in court due to a disability, call the disability coordinator (information at [www.iowacourts.gov/for-the-public/ada](http://www.iowacourts.gov/for-the-public/ada)). Persons who are hearing or speech impaired may call Relay Iowa TTY (1-800-735-2942). **Disability coordinators cannot provide legal advice.**

Defendant respectfully applies to the court for an order expunging the court records in the above-captioned case pursuant to Iowa Code section 123.46(6). In support of this application, Defendant acknowledges that the following statements are true and correct to the best of Defendant's knowledge:

*Read, complete, and check each item if you agree.*

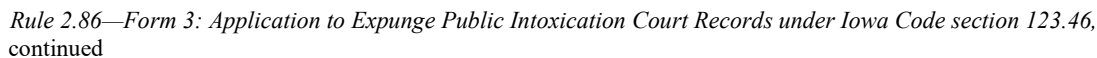
1. ☒ Defendant was convicted for a violation of Iowa Code section 123.46, consumption or intoxication in public places, or of a similar local ordinance on:  
January 15, 2022  
*Month Day Year*
2. ☒ Defendant has had no criminal convictions other than local traffic violations or simple misdemeanor violations under Iowa Code chapter 321 during the two-year period following the conviction.

**Read Before Signing**

Please check each statement below after you have read it.

- ☒ **I understand** that I must provide a copy of this application to the county attorney.
- ☒ **I understand** that the records in a criminal case expunged under this section are confidential and exempt from public access under Iowa Code section 22.7. The record shall not be accessible except by court order.

*Continue to next page*



Check one

- If you check **A**, you must fill in the following information:*

|                          |                           |                                                  |
|--------------------------|---------------------------|--------------------------------------------------|
| _____, 20____            |                           | _____<br>Self-represented defendant's signature* |
| Month                    | Day                       | Year                                             |
| 100 Example Lane         |                           |                                                  |
| _____<br>Mailing address |                           |                                                  |
| Iowa City                | IA                        | 52240                                            |
| _____<br>City            | _____<br>State            | _____<br>ZIP code                                |
| ( 319 ) 555-0101         | avery.example@example.org |                                                  |
| _____<br>Phone number    | _____<br>Email address    |                                                  |

B. ☐ Defendant's attorney is filing this Application on behalf of Defendant after discussing the contents of this Application with Defendant.

*If you check **B**, you must fill in the following information:*

\_\_\_\_\_, 20\_\_\_\_

*Month Day Year Attorney's signature*

\_\_\_\_\_  
*Name of law firm, if applicable*

\_\_\_\_\_  
*Mailing address*

\_\_\_\_\_, \_\_\_\_\_, \_\_\_\_\_  
*City State ZIP code*

(\_\_\_\_\_) \_\_\_\_\_  
*Phone number*

\_\_\_\_\_  
*Email address*

\_\_\_\_\_  
*Additional email address, if applicable*

*If you cannot find your case on the Iowa Judicial Branch eFile System, proceed with filing your application in paper at the county clerk of court office. You must fill out the below and mail or hand deliver a copy of this application to the county attorney of the county in which you are filing this application.*

I, \_\_\_\_\_, certify that on \_\_\_\_\_, 20\_\_\_\_.

*Print your full name: first, middle, last*      *Month*      *Day*      *Year*

I mailed or gave a copy of this Application to the county attorney at this address:  
Johnson County Attorney

Name of person to whom I delivered or mailed it  
 500 S. Clinton Street, Suite 400, Iowa City, IA 52244-2450  
 Mailing address City State ZIP code